

Federal Constitution

NOTES

Art. 121—(cont.)

- f. The words “Mahkamah Persekutuan (Federal Court)” and “Federal Court” substituted respectively for the words “Mahkamah Agung (Supreme Court)” and “Supreme Court” by Act A885, subparagraph 13(c)(i), in force from 24-06-1994.
- g. Paragraph (a) was substituted by Act A885, subparagraph 13(c)(ii), in force from 24-06-1994. The original paragraph (a) read as follows:
 - “(a) exclusive jurisdiction to determine appeals from decisions of a High Court or a judge thereof (except decisions of a High Court given by a registrar or other officer of the court and appealable under federal law to a judge of the Court);”.

Notes:

- 1. Upon sections 15, 16 and 17 of Act A566 coming into force on 01-01-1985, all references in or under the Constitution or in or under any other written law to the Federal Court and judges and officers thereof shall be construed as references to the Supreme Court and judges and officers thereof respectively.
- 2. The High Court in Borneo constituted under Clause (1)(b) of Article 121 of the Constitution shall, until such time as the Yang di-Pertuan Agong by order otherwise provides, have jurisdiction in the Federal Territory of Labuan—*See* section 16 of Act A585.

Clause (4)

- a. The words “the States of Sabah and Sarawak” substituted for the words “the Borneo States” by Act A354, section 43, in force from 27-08-1976.
- b. The words “Sabah and Sarawak” and “Judge” substituted respectively for the word “Borneo” and “Justice” by Act A885, paragraph 13(d), in force from 24-06-1994.
- c. *See—*
 - i. Courts of Judicature Act 1964 [*Act 91*];
 - ii. Subordinate Courts Act 1948 [*Act 92*].

Constitution of Federal Court

122. (1) The Federal Court shall consist of a president of the Court (to be styled “the Chief Justice of the Federal Court”), of the President of the Court of Appeal, of the Chief Judges of the High Courts and, until the Yang di-Pertuan Agong by order otherwise provides, of four* other judges and such additional judges as may be appointed pursuant to Clause (1A).

(1A) Notwithstanding anything in this Constitution contained, the Yang di-Pertuan Agong acting on the advice of the Chief Justice of the Federal Court may appoint for such purposes or for such period of time as he may specify any person who has held high judicial office in Malaysia to be an additional judge of the Federal Court:

Provided that no such additional judge shall be ineligible to hold office by reason of having attained the age of sixty-six years.

(2) A judge of the Court of Appeal other than the President of the Court of Appeal may sit as a judge of the Federal Court where the Chief Justice considers that the interests of justice so require, and the judge shall be nominated for the purpose (as occasion requires) by the Chief Justice.

Constitution of Court of Appeal

122A. (1) The Court of Appeal shall consist of a chairman (to be styled the “President of the Court of Appeal”) and, until the Yang di-Pertuan Agong by order otherwise provides, of ten** other judges.

(2) A judge of a High Court may sit as a judge of the Court of Appeal where the President of the Court of Appeal considers that the interests of justice so require, and the judge shall be nominated for the purpose (as occasion requires) by the President of the Court of Appeal after consulting the Chief Judge of that High Court.

*Now “shall not exceed eleven”—see P.U. (A) 163/2009.

**Now “shall not exceed thirty-two”—see P.U. (A) 164/2009.

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Art. 122

1. This Article was inserted by Act 26/1963, section 15, in force from 16-09-1963. The earlier Article as it stood at the date of repeal read as follows:

“122. (1) The Supreme Court shall consist of a Chief Justice and other judges; but the number of the other judges shall not exceed fifteen until Parliament otherwise provides.

(2) The Chief Justice and the other judges of the Supreme Court shall be appointed by the Yang di-Pertuan Agong.

(3) In appointing the Chief Justice the Yang di-Pertuan Agong shall act on the advice of the Prime Minister, after consulting the conference of Rulers, and in appointing the other judges of the Supreme Court he shall act on the advice of the Prime Minister, after consulting the Conference of Rulers and considering the advice of the Chief Justice.”.

2. The word “Supreme” substituted for the word “Federal” by Act A566, subsection 16(1), in force from 01-01-1985.

3. In the shoulder note of Clauses (1), (1A) and (2), the word “Federal” substituted for the word “Supreme” by Act A885, paragraph 14(a), in force from 24-06-1994.

Clause (1)

a. The words “four other judges and such additional judges as may be appointed pursuant to Clause (2)” substituted for the words “two other judges” at the end of the Clause by Act 31/1965, subsection 2(2), in force from 01-07-1965.

b. The words “the Yang di-Pertuan Agong by order otherwise provides” substituted for the words “Parliament otherwise provides” by Act A354, section 26, in force from 27-08-1976.

c. The words “Chief Justice of the Federal Court”), of the President of the Court of Appeal, of the Chief Judges of the High Courts” substituted respectively for the words “Lord President of the Supreme Court”), of the Chief Justices of the High Courts” by Act A885, subparagraph 14(b)(ii), in force from 24-06-1994.

Clause (1A)

a. This Clause was added by Act 31/1965, subsection 2(2), in force from 01-07-1965.

b. The words “Chief Justice of the Federal Court” substituted for the words “Lord President of the Supreme Court” by Act A885, subparagraph 14(c)(i), in force from 24-06-1994.

c. The words “sixty-six years” substituted for the words “sixty-five years” by Act A1239, section 2, in force from 21-03-2005.

Clause (2)

The words “the Court of Appeal other than the President of the Court of Appeal” and “Chief Justice” substituted respectively for the words “a High Court other than the Chief Justice” and “Lord President” by Act A885, subparagraphs 14(d)(i) and (iii), in force from 24-06-1994.

Art. 122A

1. Added by Act 26/1963, section 16, in force from 16-09-1963.

Clause (1)

a. Act 59/1966, section 2, in force from 09-08-1965, repealed paragraph (c) which read as follows:

“(c) in the High Court in Singapore, eight.”.

b. The words “the Yang di-Pertuan Agong by order otherwise provides” substituted for the words “Parliament otherwise determines” by Act A354, paragraph 27(a), in force from 27-08-1976.

Constitution of the High Courts

122AA. (1) Each of the High Courts shall consist of a Chief Judge and not less than four other judges; but the number of other judges shall not, until the Yang di-Pertuan Agong by order otherwise provides, exceed—

(a) in the High Court in Malaya, forty-seven*; and

(b) in the High Court in Sabah and Sarawak, ten**.

(2) Any person qualified for appointment as a judge of a High Court may sit as a judge of that Court if designated for the purpose (as occasion requires) in accordance with Article 122B.

Appointment of judicial commissioner

122AB. (1) For the despatch of business of the High Court in Malaya and the High Court in Sabah and Sarawak, the Yang di-Pertuan Agong acting on the advice of the Prime Minister, after consulting the Chief Justice of the Federal Court, may by order appoint to be judicial commissioner for such period or such purposes as may be specified in the order any person qualified for appointment as a judge of a High Court; and the person so appointed shall have power to perform such functions of a judge of the High Court as appear to him to require to be performed; and anything done by him when acting in accordance with his appointment shall have the same validity and effect as if done by a judge of that Court, and in respect thereof he shall have the same powers and enjoy the same immunities as if he had been a judge of that Court.

(2) The provisions of Clauses (2) and (5) of Article 124 shall apply to a judicial commissioner as they apply to a judge of a High Court.

Appointment of judges of Federal Court, Court of Appeal and High Courts

122B. (1) The Chief Justice of the Federal Court, the President of the Court of Appeal and the Chief Judges of the High Courts and (subject to Article 122c) the other judges of the Federal Court, of the Court of Appeal and of the High Courts shall be appointed by the Yang di-Pertuan Agong, acting on the advice of the Prime Minister, after consulting the Conference of Rulers.

*Now “shall not exceed sixty”—see P.U. (A) 384/2006.

**Now “shall not exceed thirteen”—see P.U. (A) 384/2006.

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Art. 122A—(cont.)

Clause (3)

The words “Yang di-Pertua Negeri” substituted for the word “Governor” by Act A354, section 42, in force from 27-08-1976.

Clause (5): Added by Act A354, paragraph 27(b), in force from 27-08-1976.

Clauses (3) & (5)

The word “Supreme” substituted for the word “Federal” by Act A566, subsection 16(1), in force from 01-01-1985.

2. This Article was substituted by Act A885, section 15, in force from 24-06-1994 and read as follows:

“122A. (1) Each of the High Courts shall consist of a Chief Justice and not less than four other judges; but the number of other judges shall not, until the Yang di-Pertuan Agong by order otherwise provides, exceed—

(a) in the High Court in Malaya, twelve; and

(b) in the High Court in Borneo, eight;

(c) (*Repealed*).

(2) Any person qualified for appointment as a judge of a High Court may sit as a judge of that court, if designated for the purpose (as occasion requires) in accordance with Article 122B.

(3) For the despatch of business of the High Court in Borneo in an area in which a judge of the Court is not for the time being available to attend to business of the court, the Yang di-Pertuan Agong acting on the advice of the Lord President of the Supreme Court, or for an area in either State the Yang di-Pertua Negeri of the State acting on the advice of the Chief Justice of the court, may by order appoint to be judicial commissioner in that area for such period or for such purposes as may be specified in the order an advocate or person professionally qualified to be admitted an advocate of the court.

(4) Subject to any limitations or conditions imposed by the order appointing him, a judicial commissioner shall have power, in the area for which he is appointed, to perform such functions of a judge of the High Court in Borneo as appear to him to require to be performed without delay; and anything done by a judicial commissioner when acting in accordance with his appointment shall have the same validity and effect as if done by a judge of that court, and in respect thereof he shall have the same powers and enjoy the same immunities as if he had been a judge of that court.

(5) For the despatch of business of the High Court in Malaya, the Yang di-Pertuan Agong acting on the advice of the Lord President of the Supreme Court, may by order appoint to be judicial commissioner for such period or such purposes as may be specified in the order any person qualified for appointment as a judge of a High Court; and the person so appointed shall have power to perform such functions of a judge of the High Court in Malaya as appear to him to require to be performed; and anything done by him when acting in accordance with his appointment shall have the same validity and effect as if done by a judge of that court, and in respect thereof he shall have the same powers and enjoy the same immunities as if he had been a judge of that court.”.

Art. 122AA & 122AB

Added by Act A885, section 16, in force from 24-06-1994.

Art. 122B

1. Added by Act 26/1963, section 17, in force from 16-09-1963.

2. In the shoulder note, the words “Federal Court, Court of Appeal and” substituted for the words “Supreme Court and of” by Act A885, paragraph 17(a), in force from 24-06-1994.

3. Act 59/1966, section 2, in force from 09-08-1965, amended—

a. *Clause (3)*, by deleting the words “or in Singapore” which appeared after the words “High Court in Borneo” and the words “or of Singapore as the case may be” which appeared at the end of the Clause.

(2) Before tendering his advice as to the appointment under Clause (1) of a judge other than the Chief Justice of the Federal Court, the Prime Minister shall consult the Chief Justice.

(3) Before tendering his advice as to the appointment under Clause (1) of the Chief Judge of a High Court, the Prime Minister shall consult the Chief Judge of each of the High Courts and, if the appointment is to the High Court in Sabah and Sarawak, the Chief Minister of each of the States of Sabah and Sarawak.

(4) Before tendering his advice as to the appointment under Clause (1) of a judge other than the Chief Justice, President or a Chief Judge, the Prime Minister shall consult, if the appointment is to the Federal Court, the Chief Justice of the Federal Court, if the appointment is to the Court of Appeal, the President of the Court of Appeal and, if the appointment is to one of the High Courts, the Chief Judge of that Court.

(5) This Article shall apply to the designation of a person to sit as judge of a High Court under Clause (2) of Article 122AA as it applies to the appointment of a judge of that court other than the Chief Judge.

(6) Notwithstanding the dates of their respective appointments as judges of the Federal Court, of the Court of Appeal or of the High Courts, the Yang di-Pertuan Agong, acting on the advice of the Prime Minister given after consulting the Chief Justice, may determine the order of precedence of the judges among themselves.

Transfer of judge of one High Court to another

122c. Article 122B shall not apply to the transfer to a High Court, otherwise than as Chief Judge, of a judge of another High Court other than the Chief Judge; and such a transfer may be made by the Yang di-Pertuan Agong, on the recommendation of the Chief Justice of the Federal Court, after consulting the Chief Judges of the two High Courts.

Qualifications of judges of Federal Court, Court of Appeal and High Courts

123. A person is qualified for appointment under Article 122B as

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Art. 122B—(cont.)

- b. *Clause (4)*, by substituting the words “the Chief Justice of each of the High Courts” for the words “Chief Justices of all the High Courts”.

Clause (2)

The words “Chief Justice” and “Federal” substituted respectively for the words “Lord President” and “Supreme” by Act A885, paragraph 17(c), in force from 24-06-1994.

Clause (3)

- a. The words “the States of Sabah and Sarawak” substituted for the words “the Borneo States” by Act A354, section 43, in force from 27-08-1976.
- b. The words “Judge” and “Sabah and Sarawak” substituted respectively for the words “Justice” and “Borneo” by Act A885, paragraph 17(d), in force from 24-06-1994.

4. *See* Articles 122A(2), 122C & 123.

5. The word “Supreme” substituted for the word “Federal” by Act A566, subsection 16(1), in force from 01-01-1985.

Clauses (1) & (4)

Substituted by Act A885, paragraphs 17(b) and (e), in force from 24-06-1994. The original Clauses read as follows:

“(1) The Lord President of the Supreme Court, the Chief Justices of the High Courts and (subject to Article 122c) the other judges of the Supreme Court and of the High Courts shall be appointed by the Yang di-Pertuan Agong, acting on the advice of the Prime Minister, after consulting the Conference of Rulers.

(4) Before tendering his advice as to the appointment under Clause (1) of a judge other than the Lord President or a Chief Justice, the Prime Minister shall consult, if the appointment is to the Supreme Court, the Chief Justice of each of the High Courts and, if the appointment is to one of the High Courts, the Chief Justice of that court.”.

Clause (5)

The words “Article 122AA(2)” and “Judge” substituted respectively for the words “Article 122A(2)” and “Justice” by Act A885, paragraph 17(f), in force from 24-06-1994.

Clause (6)

- a. Inserted by Act A566, subsection 16(2), in force from 01-01-1985.
- b. The words “Federal Court, of the Court of Appeal” and “Chief Justice” substituted respectively for the words “Supreme Court” and “Lord President” by Act A885, paragraph 17(g), in force from 24-06-1994.

Art. 122c

1. Added by Act 26/1963, section 18, in force from 16-09-1963.
2. The word “Supreme” substituted for the word “Federal” by Act A566, subsection 16(1), in force from 01-01-1985.
3. The words “Judge”, “Chief Justice of the Federal Court” and “Judges” substituted respectively for the word “Justice”, “Lord President of the Supreme Court” and “Justices” by Act A885, section 18, in force from 24-06-1994.

a judge of the Federal Court, as a judge of the Court of Appeal or as a judge of any of the High Courts if—

- (a) he is a citizen; and
- (b) for the ten years preceding his appointment he has been an advocate of those courts or any of them or a member of the judicial and legal service of the Federation or of the legal service of a State, or sometimes one and sometimes another.

Oath of office of judges

124. (1) The Chief Justice of the Federal Court shall before exercising the functions of his office take and subscribe the oath of office and allegiance set out in the Sixth Schedule, and shall do so in the presence of the Yang di-Pertuan Agong.

(2) A judge of the Federal Court, the Court of Appeal or a High Court, other than the Chief Justice of the Federal Court, shall before exercising the functions of a judge take and subscribe the oath of office and allegiance set out in the Sixth Schedule in relation to his judicial duties in whatever office.

(2A) A person taking the oath on becoming the President of the Court of Appeal shall do so in the presence of the senior judge available of the Court of Appeal.

(3) A person taking the oath on becoming Chief Judge of a High Court shall do so in the presence of the senior judge available of that High Court.

(4) A person taking the oath on becoming a judge of the Federal Court shall do so in the presence of the Chief Justice or, in his absence, the next senior judge available of the Federal Court.

(4A) A person taking the oath on becoming a judge of the Court of Appeal shall do so in the presence of the President of the Court of Appeal or, in his absence, the next senior judge available of the Court of Appeal.

(5) A person taking the oath on becoming a judge of a High Court (but not Chief Judge) shall do so in the presence of the Chief Judge of that Court or, in his absence, the next senior judge available of that Court.

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Art. 123

1. The present Article was inserted by Act 26/1963, section 19, in force from 16-09-1963, and replaced the earlier Article which read as follows:

“123. A person is qualified for appointment as a judge of the Supreme Court if—

(a) he is a citizen; and

(b) he has been an advocate of the Supreme Court or a member of the judicial and legal service of the Federation for a period of not less than ten years, or has been the one for part and the other for the remainder of that period.”.

2. The word “Supreme” substituted for the word “Federal” by Act A566, subsection 16(1), in force from 01-01-1985.

3. The words “Federal Court, Court of Appeal and” and “Federal Court, as a judge of the Court of Appeal” substituted respectively for the words “Supreme Court and of” and “Supreme Court” by Act A885, section 19, in force from 24-06-1994.

Art. 124

1. The present Article was inserted by Act 26/1963, section 20, in force from 16-09-1963, and replaced the earlier Article which read as follows:

“124. The Chief Justice and any other judge of the Supreme Court shall before exercising the functions of his office take and subscribe the oath of office and allegiance set out in the Sixth Schedule—

(a) the Chief Justice in the presence of the Yang di-Pertuan Agong; and

(b) any other judge in the presence of the Chief Justice or, in his absence, the next senior judge of the Supreme Court available.”.

2. The word “Supreme” substituted for the word “Federal” by Act A566, subsection 16(1), in force from 01-01-1985.

Clause (1)

The words “Chief Justice of the Federal Court” substituted for the words “Lord President of the Supreme Court” by Act A885, paragraph 20(a), in force from 24-06-1994.

Clause (2)

Substituted by Act A885, paragraph 20(b), in force from 24-06-1994. The original Clause read as follows:

“(2) A judge of the Supreme Court or a High Court, other than the Lord President of the Supreme Court, shall before exercising the functions of a judge take and subscribe that oath in relation to his judicial duties in whatever office, and, having done so, shall not be required to take that oath again on appointment or transfer to another judicial office, not being that of Lord President.”.

Clause (2A): Inserted by Act A1260, paragraph 4(a), in force from 19-01-2006.

Clause (3)

The word “Judge” substituted for the word “Justice” and the words “, unless he takes it in accordance with Clause (4) as a judge of the Supreme Court” were deleted by Act A885, paragraph 20(c), in force from 24-06-1994.

Clause (4)

a. The words “Federal” and “Chief Justice” substituted respectively for the word “Supreme” and “Lord President” by Act A885, paragraph 20(d), in force from 24-06-1994.

b. The words “A person” substituted for the words “Subject to Clause (3), a person” by Act A1260, paragraph 4(b), in force from 19-01-2006.

Clause (4A): Inserted by Act A1260, paragraph 4(c), in force from 19-01-2006.

Clause (5)

a. The words “the Court of Appeal or” were inserted after the words “a judge of” and the word “Judge” substituted for the word “Justice”, by Act A885, paragraph 20(e), in force from 24-06-1994.

b. Subsequently, the words “the Court of Appeal or” were deleted by Act A1260, paragraph 4(d), in force from 19-01-2006.

Tenure of office and remuneration of judges of Federal Court

125. (1) Subject to the provisions of Clauses (2) to (5), a judge of the Federal Court shall hold office until he attains the age of sixty-six years or such later time, not being later than six months after he attains that age, as the Yang di-Pertuan Agong may approve.

(2) A judge of the Federal Court may at any time resign his office by writing under his hand addressed to the Yang di-Pertuan Agong but shall not be removed from office except in accordance with the following provisions of this Article.

(3) If the Prime Minister, or the Chief Justice after consulting the Prime Minister, represents to the Yang di-Pertuan Agong that a judge of the Federal Court ought to be removed on the ground of any breach of any provision of the code of ethics prescribed under Clause (3B) or on the ground of inability, from infirmity of body or mind or any other cause, properly to discharge the functions of his office, the Yang di-Pertuan Agong shall appoint a tribunal in accordance with Clause (4) and refer the representation to it; and may on the recommendation of the tribunal remove the judge from office.

(3A) Where a judge has committed a breach of any provisions of the code of ethics prescribed under Clause (3B) but the Chief Justice is of the opinion that the breach does not warrant the judge being referred to a tribunal appointed under Clause (4), the Chief Justice may refer the judge to a body constituted under federal law to deal with such breach.

(3B) The Yang di-Pertuan Agong on the recommendation of the Chief Justice, the President of the Court of Appeal and the Chief Judges of the High Courts may, after consulting the Prime Minister, prescribe in writing a code of ethics which shall also include provisions on the procedure to be followed and sanctions which can be imposed other than the removal of a judge from office under Clause (3), in relation to a breach of any provision of the code of ethics.

(3C) The code of ethics prescribed under Clause (3B) shall be observed by every judge of the Federal Court and every judicial commissioner.